

**UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK**

-----X
JORDAN HUTCHINSON, JUSTIN HUTCHINSON,
And NORVA HUTCHINSON,

Plaintiffs,

-against-

**PLAINTIFFS' FIRST
AMENDED COMPLAINT**

JURY TRIAL DEMANDED

THE CITY OF NEW YORK, a municipal entity;
THE NEW YORK CITY POLICE DEPARTMENT;
NEW YORK CITY POLICE COMMISSIONER
RAYMOND KELLY; NEW YORK CITY POLICE
OFFICER LEONARD CLARKE (Shield No. 27183);
THOMAS GUGLIUCCI (Shield No. 20705);
and RICHARD ROES 1-5 (True Names
and Shield Nos. presently unknown, individually and
in their official capacities; and others whose true
names and shield numbers are presently unknown,
individually and in their official capacities,

09-CV-1175

Defendants.
-----X

PRELIMINARY STATEMENT

1. This is a civil rights action in which the plaintiffs, JORDAN HUTCHINSON, JUSTIN HUTCHINSON, and NORVA HUTCHINSON, seek relief for defendants' violation, under color of state law, of their rights, privileges and immunities secured by the Civil Rights Act of 1871, 42 U.S.C. § 1983, the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the Constitution and laws of the State of New York, on or about February 11, 2008.

2. Defendants, THE CITY OF NEW YORK, a municipal entity; NEW YORK CITY POLICE DEPARTMENT, a municipal entity; NEW YORK CITY POLICE COMMISSIONER RAYMOND KELLY; NEW YORK CITY POLICE OFFICER LEONARD CLARKE (Shield No. 27183); THOMAS GUGLIUCCI (Shield No. 20705); RICHARD ROES, whose true names

and shield numbers are presently unknown; and others whose true names and shield numbers are presently unknown, acting individually and in their official capacities, jointly and severally, did cause plaintiffs JORDAN HUTCHINSON and JUSTIN HUTCHINSON, to be subject to, *inter alia*, excessive and unreasonable force and false arrest and imprisonment causing them serious physical and mental injury, and violating plaintiff NORVA HUTCHINSON's Fourth Amendment Right to Privacy.

3. Plaintiffs seek compensatory and punitive damages, declaratory relief, an award of attorney fees and costs, and such other and further relief as the Court deems proper.

JURISDICTION

4. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331 and 1343(3) and (4), as this action seeks redress for the violation of plaintiffs' constitutional and civil rights.

5. Plaintiffs' claims for declaratory relief is authorized by 28 §§ 2201 and 2202 and Rule 57 of the Federal Rules of Civil Procedure.

6. Plaintiffs further invoke this Court's supplemental jurisdiction, pursuant to 28 U.S.C. § 1367(a), over any and all state constitutional and state law claims that are so related to the claims within the original jurisdiction of this Court that they form part of the same case or controversy.

VENUE

7. Venue is proper in the United States District Court for the Eastern District of New York pursuant to 28 U.S.C. § 1391(b)(2), in that this is the judicial district in which the events giving rise to the claim occurred.

JURY DEMAND

8. Plaintiffs demand trial by jury in this action on each and every one of their claims.

PARTIES

9. Plaintiff JORDAN HUTCHINSON is a citizen of the United States, and is and was at all times relevant herein a resident of the City of New York, County of Kings, State of New York.

10. Plaintiff JUSTIN HUTCHINSON is a citizen of the United States, and is and was at all times relevant herein a resident of the City of New York, County of Kings, State of New York.

11. Plaintiff NORVA HUTCHINSON is a citizen of the United States, and is and was at all times relevant herein a resident of the City of New York, County of Kings, State of New York.

12. Defendant CITY OF NEW YORK (“the City”) is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The City assumes the risks incidental to the maintenance of a police force and the employment of police officers.

13. Defendant NEW YORK CITY POLICE DEPARTMENT (“NYPD”) was, at all times relevant herein, a municipal agency of the CITY OF NEW YORK and was charged with the responsibility of enhancing the quality of life in New York City by working in accordance with constitutional rights to enforce the law.

14. Defendant RAYMOND KELLY is, and was, at all times relevant to complaint, Commissioner of the New York City Police Department and a final policy maker for purposes of the NYPD’s policies, practices and customs.

15. Defendant LEONARD CLARKE(Shield No. 27183) is, or was, at all times relevant to this complaint, a police officer employed by the NYPD in the Hot Spot Unit (“HSU”).

16. Defendant THOMAS GUGLIUCCI (Shield No. 20705) is, or was, at all times relevant to this complaint, a police officer employed by the NYPD in the HSU, and assigned to the 70th Precinct.

17. Defendants RICHARD ROE and others, presently unknown, are, or were, at all times relevant to this complaint, police officers employed by the NYPD in the HSU. These defendants include individuals who assisted and/or conspired to and/or acted in concert and/or did engage in the violation of plaintiffs’ rights described herein, or who failed to protect the plaintiffs from violations of their constitutional rights.

18. Defendants RAYMOND KELLY, LEONARD CLARKE, THOMAS GUGLIUCCI and RICHARD ROES (collectively “the individual defendants”) are, or at all times relevant to the complaint were, employees agents, servants and/or officers of the City of New York and/or the NYPD.

19. At all times relevant herein, each of the individual defendants acted under color of law in the course and scope of his or her duties and functions as an agent, employee, servant and/or officer of the City and/or NYPD in engaging in the conduct described herein.

20. At all times relevant herein, the individual defendants have acted for and on behalf of the City and/or the NYPD, and incidental to the lawfulpursuit of their duties as officers, agents, employees, and/or servants of the City and/or NYPD.

21. At all times relevant herein, the individual defendants violated clearly established constitutional standards under the First, Fourth, Fifth and Fourteenth Amendments of which a

reasonable police and/or public official under his or her respective circumstances would have known.

COMPLIANCE WITH GENERAL MUNICIPAL LAW

22. Plaintiffs served notices of claim upon defendant CITY OF NEW YORK within 90 days of the events giving rise to plaintiffs' claims and have otherwise complied with the statutory requirements of the General Municipal Law of the State of New York.

23. Although more than 30 days have elapsed since service of the notices of claim, defendant CITY OF NEW YORK has neglected to adjust or pay such claims.

24. This action is being filed within a year and 90 days of the events giving rise to plaintiffs' claims.

STATEMENT OF FACTS

25. Plaintiffs JORDAN HUTCHINSON and JUSTIN HUTCHINSON arrived in front of their home at 625 E. 18th Street, Brooklyn, New York on February 11, 2008, having just returned from the 67th Police Precinct, where JUSTIN HUTCHINSON had previously obtained a copy of an accident report.

26. After exiting their vehicle, they proceeded to the front door of their home. As JUSTIN was placing the key in the lock, both JUSTIN and JORDAN HUTCHINSON heard two police officers say: "Yo, what are you doing?" JORDAN HUTCHINSON used his cell phone to notify their mother, NORVA HUTCHINSON, who was inside the home, of the situation. NORVA HUTCHINSON came downstairs immediately, heading for the front door. She met JORDAN HUTCHINSON as he opened the door.

27. Shortly after JUSTIN HUTCHINSON entered the front door, defendant Police Officer LEONARD CLARKE barged in directly behind him, without probable cause, legal justification and absent a warrant.

28. Once inside, defendant Police Officer LEONARD CLARKE physically assaulted and attempted to slam JUSTIN HUTCHINSON to the floor, in the presence of his mother, who repeatedly requested that Officer CLARKE refrain from said activity and vacate her premises.

29. During this time, defendant Police Officer THOMAS GUGLIUCCI was physically assaulting plaintiff JORDAN HUTCHINSON, without legal justification or probable cause, outside the premises, in close proximity to the front door.

30. Without legal justification or necessity, either defendant Police Officer LEONARD CLARKE, or THOMAS GUGLIUCCI, or both, put a call out requesting assistance, resulting in defendants Police Officers RICHARD ROES 1-5 arriving on the scene.

31. Defendant Police Officer CLARKE forced JUSTIN HUTCHINSON out of the home onto the street where he and his brother, JORDAN HUTCHINSON, were forced to lay on police vehicles and the ground for approximately 45 minutes in sub-freezing temperatures, causing JORDAN HUTCHINSON, who was not wearing a coat, to lose consciousness.

32. Plaintiff JORDAN HUTCHINSON was transported to New York Methodist Hospital by Emergency Medical Services ("EMS") technicians, who subsequently arrived on the scene.

33. Plaintiffs JORDAN HUTCHINSON and JUSTIN HUTCHINSON were subjected to the aforementioned physical assaults and forced exposure to the elements in the presence of NORVA HUTCHINSON, their mother, who made continuing requests for the treatment to cease.

34. Plaintiffs JUSTIN and JORDAN HUTCHINSON had not been engaged in any unlawful, wrongful or disorderly conduct at any time prior to being assaulted by defendants CLARKE and GUGLIUCCI.

35. At no time did plaintiffs obstruct any police function, resist arrest or engage in any conduct that could reasonably be construed as endangering or threatening any police officer or other individual.

36. The stopping of JUSTIN and JORDAN HUTCHINSON, and subsequently entering their home without a warrant, was done totally devoid of any probable cause or justification.

37. The use of force by defendants CLARKE, GUGLIUCCI and RICHARD ROES was objectively unreasonable in light of the circumstances then and there prevailing, and as such constituted excessive force against plaintiffs' person, causing them injury.

38. The physical assaults on JUSTIN and JORDAN HUTCHINSON, in the presence of their mother, NORVA HUTCHINSON, caused NORVA HUTCHINSON, on February 11, 2008 and thereafter, to undergo and experience great emotional distress.

39. Although neither JUSTIN nor JORDAN HUTCHINSON were transported to a police precinct, both were issued summonses and required to appear in a courtroom to face charges. On April 28, 2008, charges against both were dismissed by the court.

40. As a direct and proximate result of the actions and conduct of the defendants described above, plaintiffs JORDAN HUTCHINSON and JUSTIN HUTCHINSON suffered deprivation of their constitutional and state law rights; physical and psychological injuries; damage to reputation; loss and damage to property; legal fees and medical and legal expenses.

41. As a direct and proximate result of the actions and conduct of the defendants described above, plaintiff NORVA HUTCHINSON has suffered deprivation of her constitutional and state law rights and emotional distress, due to her sons being beaten in her presence.

FIRST CAUSE OF ACTION

(Constitutional Violations – 42 U.S.C. § 1983)
Against CLARKE, GUGLIUCCI and RICHARD ROES

42. Plaintiffs reallege and incorporate by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

43. Defendants, under color of state law, subjected plaintiffs to the foregoing acts and omissions without due process of law and in violation of 42 U.S.C. § 1983 thereby depriving plaintiffs of their rights, privileges and immunities secured by the First, Fourth, Fifth and fourteenth Amendments to the United States Constitution, including, without limitation, deprivation of the following constitutional rights:

- A. freedom to engage in protected freedom of movement;
- B. freedom from unreasonable seizure of their persons, including excessive force;
- C. freedom from arrest without probable cause;
- D. freedom from false imprisonment, that being wrongful detention without good faith, reasonable suspicion or legal justification, and of which wrongful detention plaintiffs were aware and to which they did not consent;
- E. freedom from the lodging of false charges against them by police officers;

- F. freedom from malicious prosecution by police officers, that being prosecution without probable cause that is instituted with malice and that ultimately terminated in plaintiff's favor;
- G. freedom from abuse of process;
- H. freedom from deprivation of liberty without due process of law;
- And
- I. equal protection, privileges and immunities under the laws.

44. Defendants' deprivation of plaintiffs' constitutional rights resulted in the injuries and damages set forth above.

SECOND CAUSE OF ACTION

(Failure to Intervene – Fourth Amendment – 42 U.S.C. § 1983)
Against THOMAS GUGLIUCCI and RICHARD ROES

45. Plaintiffs reallege and incorporate by reference the allegations set forth in paragraphs as if fully set forth herein.

46. Members of the NYPD have an affirmative duty to assess the constitutionality of interactions between their fellow members of service and civilians and to intervene where they observe another member of the police department employing unjustified and excessive force against a civilian or falsely arresting a civilian.

47. Defendants RICHARD ROES were present on the afternoon of February 11, 2008 at 652 E. 18th Street and witnesses Police Officers CLARKE and GUGLIUCCI:

- A. physically assault JUSTIN and JORDAN HUTCHINSON;
- B. force JUSTIN and JORDAN HUTCHINSON to lay on the hood of police vehicles and on the ground in extreme sub-freezing temperatures;

C. verbally abuse plaintiff NORVA HUTCHINSON;
and

D. falsely arrest plaintiffs JUSTIN and JORDAN HUTCHINSON.

48. Police Officers LEONARD CLARKE's and THOMAS GUGLIUCCI's use of force against plaintiffs JUSTIN and JORDAN HUTCHINSON was obviously excessive and unjustified under the circumstances, yet defendants failed to take any action or make any effort to intervene, halt or protect plaintiffs from being physically brutalized by both officers.

49. The arrests of plaintiffs JUSTIN and JORDAN HUTCHINSON were clearly without probable cause or other legal justification and in violation of their United States and state constitutional guarantees.

50. Defendants' violation of plaintiffs' constitutional rights by failing to intervene in CLARKE's and GUGLIUCCI's clearly unconstitutional use of force and plaintiffs' unconstitutional arrests resulted in the injuries and damages set forth above.

THIRD CAUSE OF ACTION

(Individual Supervisory Liability – 42 U.S.C. § 1983)
Against RICHARD ROES

51. Plaintiffs reallege and incorporate by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

52. Individual defendants RICHARD ROES were, at all relevant times, supervisory personnel in the NYPD, with oversight responsibility for the training, instruction, supervision and discipline of the named and unnamed individual police officer defendants who deprived plaintiffs of their federal constitutional rights.

53. The individual supervisory defendants knew or should have known that the named and unnamed individual police officer defendants failed to intervene in Police Officer

CLARKE's and THOMAS GUGLIUCCI's clearly excessive force against plaintiffs or in plaintiffs' clearly unlawful arrests.

54. The individual supervisor defendants were personally involved in either ordering, or failing to take preventive and remedial measures to guard against, plaintiffs' constitutional deprivations. The supervisory defendants knew, or in the exercise of due diligence, should have known that the actions taken against plaintiffs by the named and unnamed individual police officer defendants was likely to occur.

55. The failure of the individual supervisor defendants to train, supervise and/or discipline the named and unnamed individual police officer defendants with respect to the constitutional rights of civilians amounted to gross negligence, deliberate indifference or intentional misconduct which directly and proximately caused the injuries and damages to plaintiffs set forth above.

FOURTH CAUSE OF ACTION

(Monell Claim Against Defendant CITY – 42 U.S.C. § 1983)

56. Plaintiffs reallege and incorporate by reference the allegations set forth in the foregoing paragraphs as fully set forth herein.

57. All of the acts and omissions by the named and unnamed individual police officer defendants described above were carried out pursuant to overlapping policies and practices of the City of New York which were in existence at the time of the conduct alleged herein and were engaged in with the full knowledge, consent, and cooperation and under the supervisory authority of the defendants CITY and the NYPD.

58. Defendants CITY and the NYPD, by their policy-making agents, servants and employees, authorized, sanctioned and/or ratified the individual police defendants' wrongful acts; and/or failed to prevent or stop those acts; and/or encouraged those acts to continue.

59. The actions of the individual police defendants resulted from and were taken pursuant to the following *de facto* policies and/or well-settled and widespread customs and practices of the CITY, which are implemented by members of the police department:

- a. special units, in this case HSU, are encouraged by their supervisors and/or tacitly allowed by the NYPD, specifically defendant Police Commissioner KELLY, physically to brutalize suspects and arrestees without consequence – *i.e.*, without fear of reprimand, discipline or even re-training by the Department;
- b. NYPD officers engage in systemic and ubiquitous perjury, both oral and written, to cover-up constitutional and state law violations committed against civilians by either themselves or their fellow officers, supervisors and/or subordinates. They do so with the knowledge and approval of their supervisors, commanders and Police Commissioner Kelly, who all:
 - (i) tacitly accept and encourage a code of silence wherein police officers refuse to report other officers' misconduct or tell false and/or incomplete stories, *inter alia*, in sworn testimony, official reports, in statements to the Civilian Complaint Review Board ("CCRB") and the Internal Affairs Bureau ("IAB"), and in public statements designed

to cover for and/or falsely exonerate accused police officers; and

- (ii) encourage and/or fail to discipline officers for “testilying” and/or fabricating false evidence to initiate and continue the malicious prosecution of civilians in order to cover-up civil rights violations perpetrated by themselves or fellow officers, supervisors and/or subordinates against those civilians; and
- c. the NYPD, with the knowledge, approval and encouragement of Police Commissioner Kelly, fails to properly train, supervise and/or discipline officers concerning First Amendment rights of bystanders to observe and protest police (mis)conduct without suffering retaliatory use of force, false arrest and/or malicious prosecution.

60. The existence of the foregoing unlawful *de facto* policies and/or well-settled and widespread customs and practices is known to, encouraged and/or condoned by supervisory and policy-making officers and officials of the NYPD and the CITY, including, without limitation defendant Commissioner Kelly.

61. Despite knowledge of such unlawful *de facto* policies, practices and/or customs, these supervisory and policy-making officers and officials of the NYPD and the CITY, including defendant Commissioner Kelly, have not taken steps to terminate these policies, practices and/or customs, do not discipline individuals who engage in such policies, practices and/or customs, or otherwise properly train police officers with regard to the constitutional and statutory limits on the exercise of their authority, and instead sanction and ratify these policies, practices and/or customs through their active encouragement of, deliberate indifference to and/or reckless

disregard of the effect of said policies, practices and/or customs upon the constitutional rights of persons in the City of New York.

62. The aforementioned CITY policies, practices and/or customs of failing to supervise, train, instruct and discipline police officers and encouraging their misconduct are evidenced by the police misconduct detailed herein.

63. The policy, practice, custom and usage of failing to screen, discipline, supervise, counsel, transfer and/or control police officers, is evidenced, inter alia, by the following:

a. The Report of the Commission to Investigate Allegations of Police Corruption and the Anti-Corruption Procedures of the Police Department (“Mollen Commission Report”), dated July 7, 1994, states:

In the face of this problem [of corruption], the [New York City Police] Department allowed its systems for fighting corruption virtually to collapse. It has become more concerned about the bad publicity that corruption disclosures generate than the devastating consequences of corruption itself. As a result, its corruption controls minimized, ignored and at times concealed corruption rather than root it out. Such an institutional reluctance to uncover corruption is not surprising. No institution wants its reputation tainted – especially a Department that needs the public’s confidence and partnership to be effective. A weak and poorly resourced anti-corruption apparatus minimizes the likelihood of such taint, embarrassment and potential harm to careers. Thus there is a strong institutional incentive to allow corruption efforts to fray and lose priority – which is exactly what this Commission uncovered. This reluctance manifested itself in every component of the Department’s corruption controls from command accountability and supervision, to investigations, police culture, training and recruitment.

For at least the past decade, the system designed to protect the Department from corruption minimized the likelihood of uncovering it.

Mollen Commission Report, pp. 2-3.

b. Accordingly, in 190, the Office of Special Prosecutor, which investigated charges of police corruption, was abolished.

- c. The Mollen Commission concluded that police perjury and falsification of official records

is probably the most common form of police corruption facing the criminal justice system. . . .

. . . Regardless of the motives behind police falsifications, what is particularly troublesome about this practice is that it is widely tolerated by corrupt and honest officers alike, as well as their supervisors. Corrupt and honest officers told us that their supervisors knew or should have known about falsified versions of searches and arrests and never questioned them.

. . . What breeds this tolerance is a deep-rooted perception among many officers of all ranks within the Department that nothing is really wrong with compromising facts to fight crime in the real world. Simply put, despite the devastating consequences of police falsifications, there is a persistent belief among officers that it is necessary and justified, even if unlawful. As one dedicated officer put it, police officers often view falsifications as, to use his words, “doing God’s work” – doing whatever it takes to get a suspected criminal off the streets. This attitude is so entrenched, especially in high-crime precincts, that when investigators confronted one recently arrested officer with evidence of perjury, he asked in disbelief, “What’s wrong with that? They’re guilty.”

Mollen Commission Report, pp. 36, 40-41.

- d. Significant evidence of perjured sworn statements systemically provided by officers to attempt to cover-up or justify unlawful mass arrests of 1800 people has been and continues to be developed in the consolidated litigation arising out of the 2004 Republican National Convention. *See, e.g.,* Second Amended Class Action Complaint in *MacNamara, et al. v. City of New York, et al.*, 04-CV-9216 (SDNY) at ¶¶73(G)-(I), 102, 107, 112, 119, 124, 129, 143, 158, etc., 228, 232, 240, 259.
- e. New York District Attorney Robert Morgenthau has been quoted as acknowledging that in the NYPD there is a “code of silence,” or a “code of protection” that exists among officers and that is followed carefully.

Case 1:09-cv-01175-RJD-RER Document 12 Filed 08/10/09 Page 16 of 28 PageID #: 74

Case 1:09-cv-01175-RJD-RER Document 12 Filed 08/10/09 Page 17 of 28 PageID #: 75

silence” in the NYPD.

- g. Former New York City Police Commissioner Robert Daly wrote in 1991 that the “blue wall of solidarity with its macho mores and prejudices, its cover-ups and silence, is reinforce every day in every way.”
- h. Regarding defendant CITY’s tacit condonement and failure to supervise, discipline or provide remedial training when officers assigned to drug enforcement units engage in excessive force, the Civilian Complaint Review Board is a City agency, allegedly independent from the NYPD, that is responsible for investigating and issuing findings on complaints of police abuse of civilians. It is rare that the CCRB substantiates an allegation of police misconduct.¹ When it does, however, defendant Police Commissioner KELLY controls whether the NYPD pursues the matter and he alone has authority to impose discipline on the subject officer(s). Since 2005, during KELLY’s tenure, only one-quarter of officers whom the CCRB found engaged in misconduct received punishment more severe than verbal “instructions.” Moreover, the number of CCRB-substantiated cases that the NYPD has simply dropped (*i.e.*, closed without action or discipline) spiked from less than 4% each

¹ In 2006, out of more than 10,000 allegations that were fully investigated, the CCRB substantiated only 594 (about 6%). In 2007, out of more than 11,000 allegations that were fully investigated, the CCRB substantiated only 507 (about 5%). See CCRB Jan-Dec.2007 Status Report at p.19, available at http://www.nyc.gov/html/ccrb/pdf/ccrbann2007_A.pdf. Upon information and belief, the low rate of substantiated complaints is due in part to the above-noted *de facto* policy and/or well-settled and widespread custom and practice in the NYPD whereby police officers refuse to report other officers’ misconduct or tell false and/or incomplete stories, *inter alia*, in sworn testimony and statements given to the CCRB, to cover-up civil rights violations perpetrated by themselves or fellow officers, supervisors and/or subordinates.

year between 2002 and 2006, to 35% in 2007, and 30% so far in 2008. As a result, the percentage of cases where the CCRB found misconduct but where the subject officers were given only verbal instructions or the matter was simply dropped by the NYPD rose to 66% in 2007.

Substantiated complaints of excessive force against civilians accounted for more than 10% of the cases that the NYPD dropped in 2007 and account for more than 25% cases dropped so far in 2008. *See* 8/20/08 Daily News Editorial, "City leaders must get serious about policing the police."

- i. The CCRB itself has expressed concern over the NYPD's increasing failure to discipline officers against whom complaints of abuse have been substantiated. The CCRB's 2007 status report notes that in that year the NYPD processed cases against 296 officers whom the CCRB had found engaged in misconduct. The NYPD, under defendant Commissioner KELLY, declined to pursue any disciplinary action against 102 of those officers (34%), representing a 10-fold increase from 2006 in the percentage of officers found to have committed misconduct whom the Department chose not to discipline. Of the 172 officers that the Department did discipline, 94 received only verbal "instructions," and only 9 received any punishment more serious than a command discipline, compared to 49 in 2003, when the number of substantiated CCRB complaints was about 15% higher. *See* CCrb Jan-Dec.2007 Status Report at p.2, available at

- j. The above-noted failure to properly train, supervise and/or discipline officers concerning the First Amendment rights of bystanders to observe and protest police (mis)conduct without suffering retaliatory use of force, false arrest and/or malicious prosecution is evidenced by, *inter alia*, the number of bystander cases in recent history. *See, e.g., Ghoreishian and Dickson v. City of New York, et al.*, 08-CV-5296 (SDNY); *Stuart, et al. v. City of New York, et al.*, 07-CV-3750 (EDNY).
- k. Upon information and belief, the above-noted failure to properly train, supervise and/or discipline officers concerning the First Amendment rights of bystanders is further evidenced by, *inter alia*, the absence of any training materials or curriculum on the issue of bystanders in the Police Academy and post-Academy trainings.

64. Upon information and belief the defendant police officers herein were the subject of prior civilian and departmental complaints of misconduct that gave notice to, or should have given notice to defendant CITY and its agency, the NYPD, that the defendant police officers herein were likely to engage in conduct that would violate the civil and constitutional rights of the public, such as the conduct complained of by the plaintiffs herein.

65. The plaintiffs' injuries were a direct and proximate result of the defendant CITY and its agency, the NYPD's wrongful *de facto* policies and/or well-settled and widespread customs and practices and of the knowing and repeated failure of the defendant CITY and the NYPD to properly supervise, train and discipline their police officers.

66. The defendant CITY knew or should have known that the acts alleged herein would deprive plaintiffs of their rights, in violation of the First, Fourth, Fifth and Fourteenth

Amendments to the United States Constitution and Article I, §§ 6, 8, 11, and 12 of the Constitution of the State of New York.

67. The defendant CITY is directly liable and responsible for the acts of the individual police defendants because it repeatedly and knowingly failed to properly supervise, train, instruct, and discipline them and because it repeatedly and knowingly failed to enforce the rules and regulations of the NYPD, and to require compliance with the constitutions and laws of the State of New York and the United States.

FIFTH CAUSE OF ACTION
(Respondeat Superior)
Against CITY OF NEW YORK

68. Plaintiffs reallege and incorporate by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

69. Defendant CITY is liable for the actions of the individual defendants under the doctrine of *respondent superior*.

SIXTH CAUSE OF ACTION
(New York State Constitutional Violations)
Against CLARKE, GUGLIUCCI and RICHARD ROES

70. Plaintiffs reallege and incorporate by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

71. Such conduct breached the protections guaranteed to plaintiffs by the New York State Constitution, Article I, §§ 6, 8, 11, and 12, including their rights of:

- A. freedom to engage in protected freedom of movement;
- B. freedom from unreasonable seizure of their persons, including excessive force;

- C. freedom from arrest without probable cause;
- D. freedom from false imprisonment, that being wrongful detention without good faith, reasonable suspicion or legal justification, and of which wrongful detention plaintiffs are aware and to which they did not consent;
- E. freedom from the lodging of false charges against them by police officers;
- F. freedom from malicious prosecution by police officers, that being prosecution without probable cause that is instituted with malice and that ultimately terminated in plaintiffs' favor;
- G. freedom from abuse of process;
- H. freedom from deprivation of liberty without due process of law; and
- I. equal protection, privileges and immunities under the laws.

72. Defendants' deprivation of plaintiffs' rights under the New York State Constitution resulted in the injuries and damages set forth above.

SEVENTH CAUSE OF ACTION

(False Arrest)

Against CLARKE, GUGLIUCCI and RICHARD ROES

73. Plaintiffs reallege and incorporate by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

74. Acting under color of law, defendants CLARKE, GUGLIUCCI and RICHARD ROES, unlawfully caused, ordered, approved and/or knowingly failed to prevent plaintiffs' arrest without probable cause or other legal justification.

75. The individual defendants committed the foregoing acts intentionally, willfully and with malicious disregard for plaintiffs' rights, resulting in the injuries and damages set forth above, and are therefore liable for punitive damages.

EIGHTH CAUSE OF ACTION

(False Imprisonment)

Against CLARKE, GUGLIUCCI, and RICHARD ROES

76. Plaintiffs reallege and incorporate by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

77. Acting under color of law, defendants CLARKE, GUGLIUCCI and RICHARD ROES unlawfully caused, ordered, approved and/or knowingly failed to prevent plaintiffs' wrongful detention, thereby depriving them of their liberty without good faith, reasonable suspicion or other legal justification.

78. Plaintiffs were conscious of, and did not consent to, their confinement.

79. The individual defendants committed the foregoing acts intentionally, willfully and with malicious disregard for plaintiffs' rights, resulting in the injuries and damages set forth above, and are therefore liable for punitive damages.

NINTH CAUSE OF ACTION

(Malicious Prosecution)

Against CLARKE, GUGLIUCCI and RICHARD ROES

80. Plaintiffs reallege and incorporate by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

81. Individual defendants CLARKE, GUGLIUCCI and RICHARD ROES, acting under color of law, commenced and continued, and/or caused to be commenced and continued, a

criminal prosecution against plaintiffs that was lacking in probable cause, instituted in malice, and which ultimately terminated in plaintiffs' favor.

82. Defendants committed the foregoing acts intentionally, willfully and with malicious disregard for plaintiffs' rights, resulting in the injuries and damages set forth above, and are therefore liable for punitive damages.

TENTH CAUSE OF ACTION
(Assault and Battery)
Against CLARKE and GUGLIUCCI

83. Plaintiffs reallege and incorporate by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

84. Defendants CLARKE and GUGLIUCCI, without just cause, willfully and maliciously touched plaintiffs without their authorization and used physical force on plaintiffs, causing plaintiffs to suffer physical and emotional injuries.

85. Defendants committed the foregoing acts intentionally, willfully and with malicious disregard for plaintiffs' rights and are therefore liable for punitive damages.

ELEVENTH CAUSE OF ACTION
(Intentional Infliction of Emotional Distress)
Against CLARKE and GUGLIUCCI

86. Plaintiffs reallege and incorporate by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

87. Defendants CLARKE and GUGLIUCCI, by their aforementioned acts, did intentionally, willfully, and knowingly cause plaintiffs to suffer mental and emotional distress, pain and suffering, and damage to name and reputation.

88. Defendants committed the foregoing acts intentionally, willfully and with malicious disregard for plaintiffs' rights and are therefore liable for punitive damages.

TWELFTH CAUSE OF ACTION

(Negligent Infliction of Emotional Distress)

Against CLARKE, GUGLIUCCI and RICHARD ROES

89. Plaintiffs reallege and incorporate by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

90. The individual defendants, by their aforementioned acts, did negligently cause plaintiffs to suffer mental and emotional distress, pain and suffering, and damage to name and reputation.

THIRTEENTH CAUSE OF ACTION

(Loss of Consortium)

91. Plaintiffs reallege and incorporate by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

92. By the actions described above, resulting in plaintiffs JORDAN and JUSTIN HUTCHINSON sustaining injuries over various parts of their bodies, they are no longer able to provide the services previously rendered to their mother, plaintiff NORVA HUTCHINSON, resulting in her loss of consortium.

FOURTEENTH CAUSE OF ACTION

(Negligence of the Individual Defendants)

Against CLARKE, GUGLIUCCI, and RICHARD ROES

93. Plaintiffs reallege and incorporate by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

90. The individual defendants, by their aforementioned acts, negligently failed to use due care in the performance of their duties in that they, among other negligent acts:

- a. failed to perform their duties as a reasonably prudent and careful police officer would have done under similar circumstances; and/or
- b. carelessly and recklessly seized and detained plaintiffs without a warrant or probable cause; and/or
- c. carelessly and recklessly failed to intervene in the unlawful use of force against plaintiffs and unlawful arrest, detention and prosecution.

91. The negligent actions of the individual defendants directly and proximately caused plaintiffs' injuries and damages set forth above.

WHEREFORE, plaintiffs demand the following relief jointly and severally against all defendants:

- (a) a declaration that defendants violated the federal civil rights of plaintiffs;
- (b) compensatory damages for physical, emotional, and economic injuries suffered by plaintiffs by reason of defendants' unlawful and unjustified conduct, in an amount just and reasonable and in conformity with the evidence at trial;
- (c) punitive damages against the individual defendants to the extent allowable by law;
- (d) attorneys' fees;
- (e) the costs and disbursements of this action; and
- (f) such other and further relief as appears just and proper.

90. The individual defendants, by their aforementioned acts, negligently failed to use due care in the performance of their duties in that they, among other negligent acts:

- a. failed to perform their duties as a reasonably prudent and careful police officer would have done under similar circumstances; and/or
- b. carelessly and recklessly seized and detained plaintiffs without a warrant or probable cause; and/or
- c. carelessly and recklessly failed to intervene in the unlawful use of force against plaintiffs and unlawful arrest, detention and prosecution.

91. The negligent actions of the individual defendants directly and proximately caused plaintiffs' injuries and damages set forth above.

WHEREFORE, plaintiffs demand the following relief jointly and severally against all defendants:

- (a) a declaration that defendants violated the federal civil rights of plaintiffs;
- (b) compensatory damages for physical, emotional, and economic injuries suffered by plaintiffs by reason of defendants' unlawful and unjustified conduct, in an amount just and reasonable and in conformity with the evidence at trial;
- (c) punitive damages against the individual defendants to the extent allowable by law;
- (d) attorneys' fees;
- (e) the costs and disbursements of this action; and
- (f) such other and further relief as appears just and proper.

Dated: Brooklyn, New York
March 2, 2009



Michael W. Warren (MW1187)
MICHAEL W. WARREN, P.C.
580 Washington Avenue
Brooklyn, New York 11238
(718) 230-9790

Attorneys for Plaintiffs